

## ASCII MASTER FLOW – PANEL 1/12: Article 324 and the collegial Election Commission

### ARTICLE 324

superintendence, direction and control of rolls and elections to  
Parliament | State legislatures | President | Vice-President.

### COMPOSITION

CEC + such number of Election Commissioners as President fixes.  
President may appoint Regional Commissioners after consulting the ECI.

### COLLEGIALITY

multi-member Commission decides by majority under the governing statute.

### EXCLUSION

local-body elections -> State Election Commissions under Articles 243K and 243ZA.

### CONSTITUTIONAL POSITION

independent election manager + distributed field machinery  
bounded by Constitution, enacted law, natural justice and judicial review.

MUST REMEMBER: Separate Article 324, Articles 325-329, the RPA 1950, the RPA 1951, the 2023  
appointment Act and the non-statutory Model Code.

## ASCII MASTER FLOW – PANEL 2/12: Appointment Act, tenure, removal and independence safeguards

Anoop Baranwal (2023)

interim PM + Opposition leader + CJI committee only until Parliament made a law.

### 2023 APPOINTMENT ACT

Search Committee led by Law Minister -> panel of five

-> Selection Committee: PM + Union Cabinet Minister + Opposition leader

-> President appoints.

### TERM

six years or age 65, whichever earlier; no reappointment under the Act.

### REMOVAL

CEC -> like Supreme Court judge.

EC/Regional Commissioner -> President only on CEC recommendation.

### CURRENT LEGAL CONTROL: 24 AUGUST 2026

Act operates; challenge pending; no claim of final validation or invalidation.

### INDEPENDENCE TEST

appointment + removal + finance + secretariat + staff + transparent reasons.

## ASCII MASTER FLOW – PANEL 3/12: Election administration from schedule and rolls to repoll

### ADMINISTRATIVE CHAIN

roll revision -> schedule announcement -> statutory notification  
-> nomination -> scrutiny -> withdrawal -> campaign  
-> poll -> count -> result -> election-petition route.

### ROLLS

citizenship + qualifying age + ordinary residence + inclusion/deletion due process.

### FIELD CONTROL

Returning Officers | observers | security coordination | expenditure teams.

### URGENT INTEGRITY POWER

adjournment, repoll or countermand only through the applicable legal basis and facts.

### DISQUALIFICATION ADVICE

President under Article 103 and Governor under Article 192 obtain ECI opinion.  
Tenth Schedule disqualification belongs to Speaker/Chairman, not ECI.

## ASCII MASTER FLOW – PANEL 4/12: RPA interface, delimitation boundary, voter registration and NOTA

### RPA 1950

seat allocation/delimitation framework + electoral rolls + eligibility architecture.

### RPA 1951

conduct, candidates, expenses, corrupt practices, disqualifications and petitions.

### DELIMITATION

Delimitation Commission is the statutory authority when constituted;  
CEC/ECI participates as law provides but is not the ordinary sole delimiting body.

### People's Union for Civil Liberties (2013)

secret NOTA protects voter expression and secrecy.

### NOTA LIMIT

NOTA plurality does not automatically cancel the election or force a repoll.

### ARTICLE 329

electoral process receives anti-interruption protection; post-result petition remains available.

## ASCII MASTER FLOW – PANEL 5/12: Political parties, symbols and Model Code enforcement

### PARTY REGISTRATION

RPA 1951 section 29A -> registration.

### RECOGNITION / SYMBOL

Symbols Order, 1968 -> national/State recognition, reserved/free symbols and quasi-judicial symbol disputes.

### MODEL CODE OF CONDUCT

consensus-based non-statutory code -> operates from election-schedule announcement until completion -> rapid preventive correction and level-playing-field control.

### LEGAL OVERLAP

bribery, communal appeals, expenditure and other conduct may independently violate law.

### LIMITS

registration != recognition | symbol jurisdiction != every internal party dispute  
| MCC is not by itself a complete penal code.

## ASCII MASTER FLOW – PANEL 6/12: Campaign finance, criminalisation, paid news and social-media limits

### CAMPAIGN FINANCE

candidate account + statutory ceiling + observers/teams

!= one identical ceiling for total political-party campaign spending.

### CRIMINALISATION

candidate affidavit disclosure + RPA disqualification + court process.

ECI cannot invent new conviction or disqualification grounds.

### PAID NEWS

media monitoring -> evidence -> expense attribution or legal route where supported.

### SOCIAL MEDIA / DEEPFAKES

ad certification + MCC/advisories + applicable election/criminal/technology law.

ECI is not a general platform regulator or universal censor.

### TRANSPARENCY

Union of India v. Association for Democratic Reforms (2002)

-> voter right to candidate information.

### REFORM TEST

clear law + reasons + equal enforcement + rapid remedy + audit trail.

CLOSE DISTINCTION: The ECI conducts Union, State, Presidential and Vice-Presidential

elections; State Election Commissions conduct local-body elections, and the Delimitation

Commission remains a distinct statutory body.

## ASCII MASTER FLOW – PANEL 7/12: EVM-VVPAT architecture and current judicial controls

### POLLING CHAIN

Ballot Unit -> Control Unit -> VVPAT slip display/drop -> sealed records -> counting protocol.

### VVPAT PURPOSE

voter-verifiable paper audit trail, not a take-home ballot.

Association for Democratic Reforms v. Election Commission of India (2024)  
rejected paper-ballot return and universal 100% VVPAT counting;  
added limited post-result technical safeguards.

### 2025 FOLLOW-UP

candidate-requested diagnostic/check process operates within the Court's stated protocol.

### ANSWER DISCIPLINE

device security + roll accuracy + staff neutrality + campaign fairness  
-> transparent audit + reasoned judicial/administrative safeguards.

LIMIT unsupported fraud claims and unsupported infallibility claims are both exam-unsafe.

## ASCII MASTER FLOW – PANEL 8/12: Article 324 case-law code: power, law, collegiality and rights

Mohinder Singh Gill (1977)

Article 324 is a reservoir where law is silent; it cannot override enacted law.

A.C. Jose (1984)

ECI fills gaps but cannot act contrary to a field occupied by legislation/rules.

T.N. Seshan (1995)

multi-member Commission and equal decision-making status are constitutionally valid.

Union of India v. Association for Democratic Reforms (2002)

candidate disclosure serves the voter's Article 19(1)(a) right.

People's Union for Civil Liberties (2013)

secret NOTA protects expression; it is not a binding reject option.

Anoop Baranwal (2023) -> temporary appointment rule until legislation.

The VVPAT ruling is separately controlled by its full 2024 case label in Stage 06.

## ASCII MASTER FLOW – PANEL 9/12: ECI-SEC boundary, reform priorities, traps and final answer spine

|                                   |                                      |
|-----------------------------------|--------------------------------------|
| ECI                               | STATE ELECTION COMMISSION            |
| Parliament/State legislature/P/VP | Panchayat and municipal elections    |
| Article 324                       | Articles 243K and 243ZA              |
| national election statutes        | State local-government election law. |

### PRELIMS FIREWALL

CEC removal != EC removal | ECI advice != Tenth Schedule decision  
| ECI assists delimitation != sole delimiting authority  
| party registration != recognition | NOTA != automatic repoll.

### REFORM

credible plural appointment + stable secretariat/finance  
-> equal collegial security with accountability -> transparent complaint orders  
-> cleaner rolls -> faster disputes -> audited technology and campaign enforcement.

### MAINS SPINE

Article 324 purpose -> power/function -> legal boundary -> case-year  
-> independence deficit -> accountable reform -> trust-ecosystem verdict.

## ASCII MASTER FLOW – PANEL 10/12: Appointment-law status and institutional-independence test

### ARTICLE 324

President appoints CEC and ECs subject to parliamentary law.

### ANOOP BARANWAL (2023)

PM + LoP + CJI was an interim rule only until Parliament enacted a law.

### ACT 49 OF 2023

Search Committee -> eligible panel -> PM + LoP + nominated Cabinet Minister -> President.

### DATED CONTROL – 28 AUGUST 2026

Act operative; official 22 March 2024 order declined interim interference; no later official stay or merits judgment located.

### REFORM TEST

independence + transparency + diversity + reasoned selection + equal institutional protection.

## ASCII MASTER FLOW – PANEL 11/12: Roll, delimitation and election-dispute boundaries

RPA 1950

seat allocation and electoral-roll infrastructure; ordinary residence, qualifying dates, revision, claims and objections.

DELIMITATION

statutory Delimitation Commission; ECI participates but is not ordinary sole authority.

RPA 1951

nominations, campaign, poll, corrupt practices, disputes and election petitions.

ARTICLE 329(b)

no mid-process challenge that interrupts election; post-result election petition before High Court, then statutory Supreme Court appeal.

## ASCII MASTER FLOW – PANEL 12/12: Scheduling, repoll and countermanding legality chain

### SCHEDULE ANNOUNCEMENT

ECI fixes the programme under Article 324 and election law; legal notification follows the statutory authority and stage.

### DISTURBED POLL

adjournment or repoll requires the applicable RPA/Conduct Rules ground and recorded material.

### CANDIDATE DEATH / BOOTH CAPTURE / CORRUPT INFLUENCE

use the exact statutory provision; countermanding is not a free-standing political discretion.

### CONTROL

reasoned order -> natural justice where applicable -> preserve election timetable -> post-result petition for final election challenge.

LEGAL/SOURCE LIMIT: The official ECI roster lists CEC Gyanesh Kumar and ECs Dr Sukhbir Singh Sandhu and Dr Vivek Joshi. The 2023 Act operates while its section 7 challenge remains undecided.